

Tentative Rulings for August 17, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION TO COMPEL ANSWER/RESPONSE TO PRODUCTION OF DOCUMENTS

Tentative Ruling:

The Motions are DENIED as untimely.

Unless notice of the motion to compel furthers is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed to in writing, the propounding party waives any right to compel a further response. (CCP §§ 2031.310 & 2031.310(c)) The failure to comply with the discovery deadline is jurisdictional in that it renders the court without authority to rule on motions to compel other than to deny them. (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) Here, Defendants served their responses electronically on 4/8/2026. Accordingly, the deadline for any motions to compel furthers was 5/27/26. The motions at issue today were not filed until 6/4/26. They are untimely. No evidence has been presented showing that Defendants agreed in writing to extend the filing cut-off date.

No sanctions are awarded, as Defendants did not respond timely to Plaintiff's meet and confer efforts, and because Defendants agreed to supplement by 5/29/26—*after* the current cut-off date.